

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 26/06/2023, the FUNDACIÓN ÉTICAS DATA SOCIETY filed a complaint with entry registration number 23e00041859906 before the Spanish Agency for Data Protection against CERIMA CHERRIES, S.L. with NIF B43796283 (hereinafter, the accused party). The reasons for the complaint are as follows:

The complainant specifies that they are aware that the accused party has implemented a digital human resources management system in which the identity of workers is verified through facial recognition before they begin working.

It indicates that when workers sign their contract, they must take a photograph with the mobile phone of the camp manager, so that they can subsequently be identified with a mobile phone, with the aim of verifying their identity before entering the workplace.

Along with the complaint, the following documents are submitted:

- Founding act of the FUNDACIÓN ÉTICAS DATA SOCIETY.
- Article published at ***URL.1 regarding the digital facial recognition system.

SECOND: On 4/08/2023, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate of Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate the accused party in relation to such facts.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points: In order to investigate the occurrence of the described facts, on November 13, 2023, a request for information was made to CERIMA CHERRIES, S.L.

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On December 11, 2023, a document from CERIMA CHERRIES S.L. was received at the electronic headquarters of the Agency, in which it communicates that the company was dissolved on November 8, 2023, attaching a simple copy of the deed of dissolution and liquidation of the company, and that the digital certificate for accessing notifications expired on November 7, 2023. Entry No. ***ENTRADA.1. It is noted in the Commercial Registry that CERIMA CHERRIES S.L. has been in the process of dissolution since December 22, 2023.

Considering the similar business name, on January 29, 2024, a request was made to CERIMA GROUP S.L. to inform whether it is the successor of CERIMA CHERRIES S.L. and whether it has assumed the rights and obligations of the dissolved company, so that in case it is, it can provide information related to the facial recognition technique subject to this file.

On February 14, 2024, a response from CERIMA GROUP S.L. was received at the electronic headquarters of this Agency, in which it states that it is not the successor of CERIMA CHERRIES S.L. and that it has not assumed its rights and obligations. Entry No. ***ENTRADA.2.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) confers to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigation proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of the processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

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b) the processing is necessary for the performance of a contract in which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

III

Processing of special categories of personal data

Article 9 of the GDPR, which regulates the processing of special categories of personal data, establishes the following:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply where one of the following applies:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

b) the processing is necessary for compliance with legal obligations and the exercise of specific rights of the data controller or of the data subject in the field of employment law and social security and protection, insofar as authorized by Union or Member State law or a collective agreement under Member State law that provides adequate safeguards for the respect of fundamental rights and the interests of the data subject;

c) the processing is necessary to protect vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally capable of giving consent;

d) the processing is carried out, in the context of its legitimate activities and with appropriate safeguards, by a foundation, association, or any other not-for-profit body whose purpose is political, philosophical, religious, or trade union in nature, provided that...

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the processing refers exclusively to current or former members of such bodies or to individuals who maintain regular contact with them in relation to their purposes and provided that the personal data is not communicated outside of them without the consent of the data subjects;

e) the processing refers to personal data that the data subject has made manifestly public;

f) the processing is necessary for the formulation, exercise, or defense of claims or when courts act in the exercise of their judicial function;

g) the processing is necessary for reasons of an essential public interest, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

h) the processing is necessary for preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social care assistance or treatment, or management of health and social care systems and services, based on Union law or the laws of the Member States or under a contract with a health professional and without prejudice to the conditions and guarantees provided for in paragraph 3;

i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;

j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when their processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the laws of the Member States or with the standards established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the laws of the Member States or the standards established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data concerning health."

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In this case and according to the complaint filed by the FUNDACIÓN ÉTICAS DATA SOCIETY, the company CERIMA CHERRIES S.L. would have used facial recognition techniques for the labor control of employees, such action could constitute an infringement according to the indicated article.

However, as indicated in the preliminary investigation report, CERIMA CHERRIES S.L. is dissolved and in liquidation according to the deed presented.

Therefore, although the known facts could constitute an infringement of Article 9 of the GDPR, the

proceedings should be archived due to the dissolution and liquidation of the legal personality of the responsible entity, CERIMA CHERRIES S.L., according to the documentation in the file.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to CERIMA CHERRIES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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